

Tentative Rulings for September 16, 2026

Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2305590	JIYANI VS PATEL	MOTION TO CONSOLIDATE ON COMPLAINT FOR BUSINESS TORT/UNFAIR BUSINESS PRACTICE

Tentative Ruling:

Under C.C.P. §1048(a), “[w]hen actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” The determination of whether to consolidate two actions is a matter for the trial court’s discretion. (*Muller v. Robinson* (1959) 174 Cal.App.2d 511, 515. The purpose of consolidation is to enhance trial court efficiencies and consolidation should be granted to: (1) avoid repetitive trials of common issues; (2) avoid unnecessary costs and delays; and (3) avoid a substantial risk of inconsistent adjudications. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979.) As consolidation is discretionary, “it is possible that actions may be thoroughly ‘related’ in the sense of having common questions of law or fact, and still not be ‘consolidated,’ if the trial court, in the sound exercise of its discretion, chooses not to do so.” (*Askew v. Askew* (1994) 22 Cal.App.4th 942, 964.) And so “[w]hether separate actions shall be consolidated for trial is a matter within the discretion of the trial court and its decision will not be disturbed on appeal absent a clear showing of abuse of discretion.” (*Estate of Baker* (1982) 131 Cal.App.3d 471, 485.)

Movant is asking the Court to merge a three-year-old action concerning six WaBa Grill restaurants, owned through three corporations in which Mr. JiYani holds 47.5 percent, into a newer action, one with no trial date set yet, concerning an entirely different group of restaurants, owned through a different group of corporations, with different shareholders, in different proportions. The two corporate families share no entity, no property, no books, no bank account, and the parties, other than Mr. JIYANI and Mr. PATEL are different. The only commonality is that NISHANT PATEL and MUKUND JIYANI are participants in both, and that Mr. JIYANI has accused Mr. PATEL of comparable misconduct in each.

With the two matters remaining separate the Court finds that the two trials would not have repetitive common issues, would do little, if anything, to avoid unnecessary costs and delays; and would not avoid a risk of inconsistent adjudications. While the shareholders are similar, they involve different restaurants and claims. While Defendants contend credibility of the principals is the same, that is irrelevant for consolidation purposes. One is not res judicata as to the other. The Court see no basis for consolidation based on the facts presented in the motion.

Motion to consolidate the two matters is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407068	CRUZ VS VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Moving party: Plaintiff Valerie Josefina Cruz

Responding party: Defendant Volkswagen Group of America, Inc.

Plaintiff Valerie Josefina Cruz brings this Song-Beverly action regarding a 2022 Audi A3 with structural, electrical, suspension, engine, emissions, and related defects. Plaintiff alleges that Defendant Volkswagen Group of America, Inc. ("Defendant") failed to replace the vehicle or promptly make restitution. The complaint, filed 12/18/24, asserts Song-Beverly claims and a negligent-repair claim against the dealer. On 10/21/25, Defendant served a C.C.P. § 998 offer to compromise for \$58,649.60, plus reasonable fees and costs. The parties agreed to the offer by 11/21/25. Defendant paid the settlement funds on 4/23/26.

Now, Plaintiff moves for an award of \$18,857.50 in fees, consisting of a \$11,886 lodestar, a 1.25 multiplier of \$2,971.50, and \$4,000 in anticipated fees for the reply and hearing. Plaintiff argues that counsel's lodestar fees are reasonable and that the case warrants a multiplier.

In an untimely opposition, Defendant argues that the requested rates and time are inflated and should be reduced. It argues that the case does not warrant a multiplier. It attributes its delay in filing an opposition to a calendaring error and asks the court to continue the hearing.

In reply, Plaintiff objects to a continuance and responds on the merits. Plaintiff argues that the requested rates are reasonable. Plaintiff argues that Defendant's line-item challenges are mere argument, not evidence. Plaintiff also replaces the \$4,000 estimate with \$1,782 for reviewing the opposition and preparing the reply, and requests \$990 for 2 anticipated hours of hearing preparation and attendance. Plaintiff therefore requests a revised total of \$17,629.50.

Analysis

Untimely Opposition

While Defendant filed the opposition to the motion one day late, the court has discretion to consider an untimely opposition. (See CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) More importantly, in filing a substantive reply, Plaintiff waived any defect or irregularity in the filing and service of the opposition. (See *Carlton v. Quint*

(2000) 77 Cal.App.4th 690, 697.) Accordingly, the court gives due consideration to Defendant's untimely opposition.

The Motion

The parties do not dispute that Plaintiff is the prevailing party under this Song-Beverly Act case. This Act contains a mandatory fee-shifting provision. Under Civil Code section 1794(d), "If the buyer prevails in an action under this section, the buyer **shall** be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been *reasonably incurred* by the buyer in connection with the commencement and prosecution of such action." (Emphasis added.) Thus, Plaintiff is entitled to fees under this provision. The only question to be determined by this motion is the amount of the award to Plaintiff.

The matter of reasonableness of a party's attorney fees is within the discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) The amount of fees awarded by a trial court is subject to a very deferential standard of review. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49; see also *In re Lugo* (2008) 164 Cal.App.4th 1522, 1544-45 ("The only proper basis of reversal of the amount of an attorney fees award is if the amount awarded is so large or small that it shocks the conscience and suggests that passion and prejudice influenced the determination").) With respect to a fee award, it is well recognized that the trial court is in the best position to evaluate the work of the attorneys. (*Downey Cares v. Downey Community Development Com.* (1987) 196 Cal.App.3d 983, 997.)

Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) However, "[t]estimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Martino*, 182 Cal.App.3d 553, 559. See also *Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375-1376.)

The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

Lodestar

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167

Cal.App.4th 1379, 1394; *see also* *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Hourly Rates. A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Plaintiff's motion relies on the Declaration of Kevin Jacobson to establish counsel's experience, fees, and prior California court orders approving the same or comparable rates.

Plaintiff's base lodestar includes the following rates: Kevin Jacobson billed 0.3 hour at \$525/hour; Donald Mahnke billed 16.7 hours at \$425/hour; Joshua Kohanoff billed 0.5 hour at \$425/hour; Ellen Zakharian billed 6.8 hours at \$400/hour; and Stephanie Hovhannisyan billed 4.3 hours at \$395/hour. Plaintiff also requests fee for Derek Chipman's reply and anticipated hearing work at \$495 per hour.

Defendant argues the hourly rates should be reduced to \$350-\$450 per hour, without specifying a rate for each attorney. For fee-motion work specifically, Defendant proposes \$350/hour.

Here, Plaintiff's billing ledger reflects 28.6 hours of billed time. 28.3 of the 28.6 hours included in the base lodestar were billed at rates between \$395 and \$425 per hour, within Defendant's proposed range. Only Jacobson's 0.3 hour at \$525 exceeds that range. The requested hourly rates are not facially unreasonable, and the court declines to reduce them.

Defendant's Specific Challenges

Defendant attacks specific billing entries as follows:

Written Discovery. Defendant challenges 0.8 hours for preparation of written discovery requests and 4.8 hours for Plaintiff's responses to 4 sets of written discovery and compilation of document production. Zakharian spent 4.8 hours preparing Plaintiff's responses to Defendant's Form Interrogatories (1.2), Requests for Admission (0.7), Inspection Demand (0.9), and Special Interrogatories (1.6), and compiling Plaintiff's document production (0.4).

These do not appear facially unreasonable. The court makes no reduction.

Deposition Notices and Objections. Defendant challenges 0.2 hours to review its notice of Plaintiff's deposition and 0.7 hours to review objections to 2 PMK deposition notices. The challenged time is modest. The court makes no reduction.

Meet-and-Confer Correspondence. Defendant challenges 1.6 hours for a 4/2/25 correspondence and 0.5 hours for a 5/7/25 letter as duplicative and excessive. These entries concern distinct work. The 4/2/25 letter followed a 3/19/25 conference and

identified 7 categories of requested documents. The 5/7/25 letter addressed Defendant's subsequently served objections, and supported the later motion to compel. The court makes no reduction.

Motion to Compel. Defendant challenges 4 hours to prepare the notice, motion, declaration, separate statement, and proposed order, and 1.5 hours to review Defendant's opposition, declaration, and separate statement. The motion was contested and successful. Defendant then produced 154 pages of confidential documents, and it served its section 998 offer the next day. The hours are not unreasonable. The court makes no reduction.

Protective Order, Document Production, and Costs Memo. Defendant challenges 0.6 hours to review the proposed protective order, 0.5 hours to review the 154-page confidential production, and 0.5 hours to prepare the memorandum of costs. Each entry describes attorney work, and the time claimed is reasonable. The court makes no reduction.

Court Order. Defendant asks the court to strike a 0.3-hour entry to review and upload the order on Plaintiff's motion to compel because it combines legal and clerical work. Counsel reasonably needed to review the court's ruling and maintain it in the case file. The combined entry is only 18 minutes and permits meaningful review. The court makes no reduction.

Fee Motion. Defendant challenges 4.3 hours for reviewing instant fee motion. Fee-related services are compensable. With her reply, Plaintiff's counsel documents 3.6 hours at \$495/hour, or \$1,782, to review Defendant's opposition and declarations and to draft the reply. Plaintiff anticipates 2 additional hours at \$495/hour, or \$990, to prepare for and attend the hearing. Two total hours is a reasonable amount of time to prepare the reply and attend the hearing. At an hourly rate of \$495, this amounts to \$990.

The court therefore allows the full \$11,886 base lodestar plus \$990 for the reply and hearing, for an adjusted lodestar of \$12,876.

Multiplier

The Court denies the multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) Here, this was not a complicated case. Counsel's request based on contingency fee should already be accounted for in his hourly rate. The court declines to apply a multiplier.

Costs

Plaintiff does not request an award of costs in this motion.

Summary:

The Court exercises discretion to consider Defendant's untimely opposition. Grants the motion and awards a lesser amount of \$12,876 in fees. Deny Defendant's request to continue the hearing.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503273	QUIROZ VS JUZHONG TRUCKING INC.	DEMURRER

Tentative Ruling:

Moving party: Defendant City of Perris
Responding party: Plaintiff Janie Quiroz

This is a wrongful death action filed by Plaintiff Janie Quiroz on June 13, 2025 against Defendants Juzhong Trucking Inc., Home Depot U.S.A., Inc., City of Perris, IDI Logistics, LLC, Juzhong Qiu, State of California (CalTrans), and County of Riverside alleging 15 causes of action for 1) negligence, 2) negligence per se, 3) negligence, 4) negligence per se, 5) negligent hiring, retention, training and supervision, 6) negligent entrustment, 7) dangerous condition of public property, 8) public entity liability for failure to perform mandatory duties, 9) negligence, 10) negligence, 11) negligence, 12) negligence, 13) negligence, 14) public nuisance, and 15) wrongful death.

County of Riverside demurred and on October 22, 2025, the court sustained the demurrer to the 7th and 15th causes of action, with leave to amend. The court stayed the leave to amend pending an order on a motion to strike and a demurrer set to be heard on November 12, 2025 and December 3, 2025. The court then on November 12, 2025 granted Home Depot's motion to strike with leave to amend. Then on December 3, 2025, the court sustained City of Perr's demurrer to the 8th, 9th and 14th causes of action without leave to amend and as to the 7th and 15th sustained, with leave to amend.

On December 23, 2025, Plaintiff Quiroz filed a First Amended Complaint alleging 14 causes of action for negligence (1st, 3rd, 9th, 10th, 11th, and 12th); negligence per se (2nd and 4th); negligent hiring, retention, training, and supervision (5th); negligent entrustment (6th); dangerous condition of public property (7th); public entity failure to perform mandatory duties (8th); public nuisance (13th), and wrongful death (14th). City of Perris demurred to the FAC. Thereafter, the parties stipulated to the filing of a Second Amended Complaint. On April 28, 2026 the court signed an order, based on the parties' stipulation, allowing the filing of a Second Amended Complaint.

On April 28, 2026, Plaintiff Quiroz filed a SAC alleging 11 causes of action for (1st, 3rd, 8th, 9th and 10th); negligence per se (2nd and 4th); negligent hiring, retention, training, and supervision (5th); negligent entrustment (6th); dangerous condition of public property (7th); and wrongful death (11th).

On May 13, 2026, Plaintiff Quiroz dismissed County of Riverside with prejudice. Defendant City of Perris demurs to the 7th and 11th causes of action in the SAC, City asserts that although Plaintiff was previously granted leave to amend the SAC still fails to allege facts establishing the existence of a dangerous condition of public property, including any physical defect in the roadway attributable to City or the basis for the City's liability, including overcoming governmental immunity. In addition, City asserts that the SAC still fails to allege facts establishing a statutory basis for the wrongful death cause of action. The wrongful death claim is also derivative of the underlying claim for dangerous condition of public property against the City and fails for the same reasons that the predicate claim fails.

In opposition, Plaintiff Quiroz asserts the dangerous condition of public property claim is sufficiently pled as the SAC sets forth an amalgam of factors that created and constituted a dangerous condition including inadequate lighting, no stopping any time signs, Gov. Code section 830.8 expressly preserved liability for concealed traps. Quiroz also asserts that the City's design immunity defense cannot be resolved on demurrer and the SAC adequately alleges loss of design immunity as the SAC expressly alleges changed physical conditions.

In reply, City asserts that Quiroz did not oppose the demurrer to the 11th cause of action for wrongful death; therefore, the demurrer should be sustained without leave to amend. As the wrongful death action is based on the 7th cause of action, as it relates to City of Perris, it only makes sense that the 7th cause of action was the one specifically addressed. That does not relate to a finding that Plaintiff did not oppose the demurrer to the 11th cause of action.

As to the dangerous condition claim, City asserts that Plaintiff cannot escape governmental immunity in this case simply by combining multiple, otherwise immunity-barred contentions or suppositions to establish a claim for the dangerous condition of public property when the property is used with due care in a manner it is reasonably foreseeable that it will be used. Under the Government Claims Act, statutory immunities can bar immunity even when a dangerous condition is established, including for design (§830.6), failure to provide warning devices (§830.8), signage (§830.4), failure to enforce traffic laws (§818.2), and the case law barring claims for lighting or illegal third-party conduct.

The SAC alleges in pertinent part as follows:

On January 17, 2025, Defendant Qiu illegally parked a freightliner tractor pulling a flatbed trailer on eastbound E. Eilis 1000 feet east of Redlands Avenue, with the engine off, without illuminated headlights, without illuminated taillights, without illuminated hazard lights, without flares, cones, or other warning devices and without the proper reflective markings/tape. As parked, the tractor-trailer protruded into the

designated lane for eastbound traffic and was parked in close proximity to a "No Stopping Any Time" sign. There were multiple "No Stopping Any Time" signs posted along the south edge and north edge of E. Ellis Avenue.

Decedent Adrian Quiroz was driving eastbound on E. Ellis Avenue when the roadway was dark and streetlamps were only installed along the north edge of E. Ellis Avenue. When Adrian collided with the parked tractor-trailer and was killed.

The roadway where the incident occurred was owned, managed, etc. by City of Perris. City and its employees had a duty to maintain the premises in a reasonably safe condition. The dangerous condition consisted of the interrelated combination of physical defects and design features, including, but not limited to:

- a. A roadway edge and lane configuration that permitted large commercial tractor-trailers to intrude into the active eastbound travel lane when stopped adjacent to the roadway, due to insufficient lateral clearance and lack of physical separation;
- b. A roadway configuration that did not have a shoulder wide enough to accommodate a full-size tractor-trailer combination stopping and/or parking within the shoulder and not encroaching into the eastbound lane of travel for E. Ellis Avenue;
- c. The absence of any physical barriers, curbs, bollards, guard rails, striping buffers, or delineators to prevent and/or discourage large commercial vehicles from stopping and/or parking along the south roadway edge of E. Ellis Avenue and encroaching into the eastbound lane of E. Ellis Avenue;
- d. A roadway design immediately adjacent to high-volume industrial logistics facility (Home Depot Distribution Center) that foreseeably generates heavy tractor-trailer traffic, without incorporating any designated off-street staging, queuing, stopping, parking, or truck accommodation areas;
- e. A dark roadway segment with limited visual contrast and no protective offset, which, in combination with the above conditions, rendered large vehicles, including, tractor trailer combinations, intruding into eastbound E. Ellis Avenue difficult to perceive in time to avoid a collision;
- f. The placement and maintenance of "No Stopping Any Time" signage without corresponding physical design features to make compliance feasible, thereby creating a roadway condition that predictably results in lane instructions.

The dangerous condition was not merely the result of third-party illegal parking, but arose from the physical design, configuration, and lack of protective features of the roadway itself, which allowed, accommodated, and failed to prevent large commercial

vehicles from intruding into the active travel lane on E. Ellis Avenue. It was reasonably foreseeable that the roadway condition would be used by motorists traveling at night and they would rely on the no stopping signs and that large commercial trucks regularly travel to and from the adjacent Home Depot distribution center and stop and park/queue up along the roadway edge and the roadway's physical configuration allows large commercial trucks to intrude on the active eastbound lane, creating a collision hazard.

City, through its employees acting within the scope of employment created the dangerous condition by: 1) designing and approving a roadway adjacent to a major logistics facility without incorporating truck staging, truck queuing, setback, or separation features, 2) approving a maintaining a roadway cross-section that fails to prevent encroachment into the travel lane by large vehicles, and 3) designing and maintaining the roadway in a manner that predictably results in lane obstruction by foreseeable users of the roadway.

City knew, or through reasonable inspection should have known, that 1) tractor-trailers regularly stopped, parked, staged and queued along E. Ellis Avenue, 2) large commercial vehicles frequently intruded into the travel lane of E. Ellis Avenue, 3) the condition of tractor-trailers regularly stopping, parking, staging, queuing, and intruding into the travel lane of E. Ellis Avenue was recurring, visible during the daytime, and long-standing, and 4) the condition posed a serious risk to motorists, particularly at night.

Despite such knowledge of the dangerous condition City failed to take reasonable measures, including but not limited to: 1) Installing physical barriers or separation devices; 2) Expanding the shoulder along E. Ellis Avenue to accommodate the entirety of a large commercial vehicle and/or tractor-trailer combination; 3) Modifying roadway geometry and/or lane width; 4) providing and/or requesting tractor-trailer parking, stopping, staging, and/or queuing accommodations; 5) Implementing engineering controls to prevent lane intrusion into the active lane of travel on E. Ellis Avenue.

The dangerous condition was a substantial factor in causing Decedent's death, independent of any third-party negligence.

Since the design of E. Ellis Avenue, there has been a change in conditions with the building of the Home Depot Distribution Center, increased tractor-trailer combination traffic, increased commercial vehicle traffic, and industrial use of the area roadway, rendering the initial design dangerous; and Defendants had notice of these changes and failed to act. Defendants had sufficient time to remedy the dangerous condition by, inter alia, widening the roadway, widening the shoulder, installing physical barriers to prevent intrusion into the active lane of travel of E. Ellis Avenue, and/or providing for stopping, parking, staging, and/or queuing accommodations for commercial vehicles.

Evidentiary Issues

Requests for Judicial Notice:

Defendant City of Perris requests that the court take judicial notice of the following:

1. The Court's December 3, 2025, tentative ruling on Defendant City of Perris' demurrer to the Complaint. (Exhibit A.)

"[A] court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.." (*In re Kenneth D.* (2024) 16 Cal.5th 1087, 1106.) Therefore, while the court can take judicial notice of the existence of the tentative ruling, it may not consider its contents, as it does not include an order, findings of fact or conclusions of law. A tentative ruling is not a document of which the court would take judicial notice, only the order based on the tentative ruling itself would be relevant. Accordingly, the court denies the request.

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally, a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is

whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

7th Cause of Action for Dangerous Condition of Public Property: The elements to establish a cause of action for dangerous condition of public property are: 1) the incident occurred on public property as defined in G.C. §830(c), 2) the property was in a dangerous condition at the time of the injury, 3) the injury was proximately caused by the dangerous condition, 4) the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and 5) the public entity had actual or constructive notice under §835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 146; G.C. §835.)

Public property "means real or personal property owned or controlled by the public entity, but do not include easements, encroachments and other property that are located on the property of the public entity but are not owned or controlled by the public entity." (Gov. Code §830(c).) " 'Dangerous condition means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.' " (Gov. Code §830(a).)

Although public entities are generally not liable for failure to protect individuals from third party crime, a public entity may owe members of the public a duty not to keep its premises in a condition that will increase the reasonably foreseeable risk that criminal activity will injure such individuals. (*Zelig v. County of Los Angeles* (2002) 27 Cal. 4th 1112, 1132.) Public property may be considered to be in a dangerous condition due to the design or location of improvements or the interrelationship of structural or natural features of an improvement or the presence of latent hazards associated with normal use. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal. 4th 139, 149.)

"A public entity may be liable for a dangerous condition of public property even where the immediate cause of the plaintiff's injury is a third party's negligent or illegal act if some physical characteristic of the property exposes its users to increased danger from third party negligence or criminality." (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994.) However, " ' 'third party conduct by itself, unrelated to the condition of the property, does not constitute a 'dangerous condition' for which a public entity may be held liable.' " (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994 [internal quotations omitted].) "There must be some defect in the physical condition of the property and that defect must have some causal relationship to the

third-party conduct that injures the plaintiff." (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 994 [internal quotations omitted].)

As pointed out by City the allegations of the alleged wrong are individually protected by design immunity (Gov. Code §830.6); immunity for failure to provide warning devices (Gov. Code §830.8); signage immunity (Gov. Code §830.4), immunity for failure to enforce traffic laws (Gov. Code §818.2) and case law barring claims for lighting or illegal third-party conduct. Plaintiff Quiroz says these immunities are overcome by establishing that the accident-causing condition was a concealed trap. City asserts that Quiroz' alleged concealed trap rests entirely on illegal parking and non-enforcement, not a hidden physical defect of the roadway.

Gov. Code section 830.8 provides governmental immunity "for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code." (Gov. Code §830.8). "This limitation to section 830.8 immunity is commonly referred to as the 'concealed trap' exception." (*Transavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 654.) Design immunity does not categorically preclude a claim for failure to warn of a concealed trap. (See *Transavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 654.)

While caselaw generally permits claims for failure to warn of a dangerous traffic condition that is subject to design immunity, a plaintiff pursuing such a claim must nonetheless prove various elements that are not present when pursuing a claim alleging a public entity created that dangerous condition: (1) the public entity had actual or constructive notice that the approved design resulted in a dangerous condition, (2) the dangerous condition qualified as a concealed trap, i.e., would not have been reasonably apparent to, and would not have been anticipated by, a person exercising due care, and (3) the absence of a warning was a substantial factor in bringing about the injury. (See *Transavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 654.)

"This 'concealed trap' statute applies to accidents proximately caused when, for example, the public entity fails to post signs warning of a sharp or poorly banked curve ahead on its road or of a hidden intersection behind a promontory [citations], or where a design defect in the roadway causes moisture to freeze and create an icy road surface, a fact known to the public entity but not to unsuspecting motorists [citation], or where road work is being performed on a highway [citation]." (*Chowdhury v. City of Los Angeles* (1995) 38 Cal.App.4th 1187, 1197.)

The SAC alleges that the combination of the multiple "No Stopping Signs," the long- standing traffic parking congestion, and Defendants' failure to warn that large commercial vehicles such as the Freightliner routinely stopped, waited and/or parked on E. Ellis Avenue created a concealed trap pursuant to Government Code Section 830.8 in that a signal, sign, marking or device was necessary to warn a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care. However, bottom line, while the parking of commercial vehicles along the roadway made use of the roadway dangerous, there is nothing about the roadway itself that

presented a dangerous condition of public property. Further, the alleged concealed trap was not created by City's design of the roadway, but by truckers' illegal use of the roadway despite posted signs that such parking is illegal (for obvious reasons).

Accordingly, the court sustains the demurrer, without leave to amend, as it is clear that Plaintiff has been afforded the opportunity to present facts that the roadway itself was in an actionable dangerous condition, but has failed to do so.

11th Cause of Action for Wrongful Death: A cause of action for wrongful death is a statutory claim that compensates specified heirs of the decedent for losses suffered as a result of a decedent's death. (CCP §§ 377.60-377.62; *LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 872.) The elements of a wrongful death claim are: (1) a tort (negligence or other wrongful act); (2) resulting death of another person; and (3) damages, consisting of the pecuniary loss suffered by the heirs. (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968; *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1263.) Facts in support of each of the requirements of a statute upon which a cause of action is based must be pleaded. (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) As Plaintiff Quiroz has failed to allege a proper tort claim against City it likewise has failed to allege facts sufficient to state a claim for wrongful death against City. **Accordingly, the court sustains, without leave to amend, as to City of Perris.**

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504289	KAMBLE VS MIRA LOMA ASSOCIATES	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

The opposition to this motion is untimely and was due filed and served at least 9 court days prior to the 9/16/2026 hearing (CCP 1005). Accordingly, the motion to set aside is unopposed and is granted in all respects.

Defendants are ordered to file the attached Demurrer within 10 days of this order. The Court sets the matter for a Case Management Conference on 11/18/2026 at 8:30 a.m. in Dept. 6.

Moving party is to give notice of ruling and of the CMC.